

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No. 519411/2019

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GERMAINE PATTERSON,
Plaintiff,

-against-

**FIRST AMENDED
VERIFIED
COMPLAINT**

THE CITY OF NEW YORK,
NEW YORK CITY POLICE OFFICER
GUTIERREZ, Shield # 3293,
70th Precinct,
NEW YORK CITY POLICE OFFICER
ELLERS, Shield #11215,
70th Precinct,
NEW YORK CITY POLICE OFFICER
BRAGGS, Shield # 21920
70th Precinct,
NEW YORK CITY POLICE SERGEANT
MAYNARD, Shield # 1792
70th Precinct,

Defendants.

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Plaintiff, GERMAINE PATTERSON, by his Attorney, VICTOR M. BROWN, ESQ., as and for a
verified complaint alleges respectfully and states as follows:

FOR A FIRST CAUSE OF ACTION

NATURE OF ACTION

1. This is a Civil Rights, False Arrest, Intentional destruction and taking of property, and Negligence and/or Negligent supervision action for compensatory damages proximately resulting from Plaintiff having been falsely arrested, having his property damaged, and being suspended by his employer as a result of being unlawfully arrested by the above captioned Defendant Officers on September 10, 2018 in the vicinity of Dorchester Road and Flatbush Avenue, Brooklyn, New York.

NOTICE OF CLAIM

2. That on November 30, 2018, Plaintiff GERMAINE PATTERSON, prior to the bringing of the within action, and within ninety days after the date of the alleged incident, filed a Notice of Claim which was duly served upon the Defendant(s).
3. That more than thirty days have elapsed since the service of the said Notice of Claim and notice of intent to sue upon the Defendant(s).
4. That the Defendant(s) and its Comptroller have failed, neglected to pay, settle, compromise or adjust the claim of the Plaintiff.
5. That this action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
6. That the Plaintiff has duly complied with all the conditions precedent to the commencement of this action, including submission to an inquiry concerning the justness of the claim on June 28, 2019, after filing a Notice of Claim on November 30, 2018 pursuant to General Municipal Law 50.

THE PARTIES

7. That at all times mentioned, the Plaintiff, GERMAINE PATTERSON, is a United States citizen, who was, and still is a resident of the State of New York, residing in Kings County.
8. That at all times mentioned, Defendant CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police Department, which acts as its agent in the area of Law Enforcement and for which it is ultimately responsible. Defendant CITY OF NEW YORK assumes the risks incidental to the maintenance of a Police Department, and the employment of Police Officers, as said risk attaches to the public consumers of the services provided by THE NEW YORK CITY POLICE DEPARTMENT.
9. That upon information and belief, at all times relevant, Defendant CITY OF NEW YORK, employed Police Officers, Corrections Officers and medical personnel and others hereinafter mentioned in this complaint.
10. THE NEW YORK CITY POLICE DEPARTMENT, while not a named Defendant, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to

carry out all police functions for Defendant CITY OF NEW YORK and assumes the risk incidental to the maintenance of a police force and the employment of Police Officers

11. Defendant(s), NEW YORK CITY POLICE OFFICERS GUTIERREZ, Shield Number 3293, ELLERS, Shield Number 11215, BRAGGS, Shield Number 21920, and NEW YORK CITY POLICE SERGEANT MAYNARD, Shield Number 1792, upon information and belief, all of the 70th Precinct of THE NEW YORK CITY POLICE DEPARTMENT, were and are, at all times relevant, Officers, employees and agents of Defendant CITY OF NEW YORK. Defendant Officers GUTIERREZ, ELLERS and BRAGGS are sued individually and in their official capacities. At all times relevant, Defendant Officers GUTIERREZ, ELLERS, BRAGGS and Sergeant MAYNARD were acting under color of State Law and in the scope of their duties and functions as agents, servant and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. Defendant Officers GUTIERREZ, ELLERS, BRAGGS and Sergeant MAYNARD received training in making arrests, automobile searches in effecting an arrest, and legal training from Defendant CITY OF NEW YORK and THE NEW YORK CITY POLICE and were acting for and on behalf of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK at all times relevant herein with the power and authority vested in them as police officers, agents and employees of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK and incidental to their lawful duties as officers, employees and agents of THE NEW YORK CITY POLICE DEPARTMENT and Defendant CITY OF NEW YORK.

AS AND FOR A FIRST CAUSE OF ACTION

12. Plaintiff alleges that on September 10, 2018, at approximately 8:30 p.m. in the vicinity of Dorchester Road and Flatbush Avenue, Kings County New York, Plaintiff GERMAINE PATTERSON was in his motor vehicle speaking with a friend when Plaintiff and subsequently his automobile, were subjected to an unlawful search and false arrest by named Defendants, NEW

YORK CITY POLICE OFFICER GUTIERREZ, Shield Number 3293, of the 70th Precinct, NEW YORK CITY POLICE OFFICER ELLERS, Shield Number 11215, of the 70th Precinct, and NEW YORK CITY POLICE OFFICER BRAGGS, Shield Number 21920, of the 70th Precinct, and held in custody of THE NEW YORK CITY POLICE DEPARTMENT for approximately five hours, without lawful reason or cause. During the search of the Plaintiff, the Defendant Officers ignored Plaintiff's repeated questions regarding the reasons for the Plaintiff's arrest, and the searching of Plaintiff's automobile.

13. Plaintiff alleges that on September 10, 2018 the Plaintiff's Driver's license was taken by named Defendant, NEW YORK CITY POLICE SERGEANT MAYNARD, Shield Number 1792, and was not returned to the Plaintiff by named defendant SERGEANT MAYNARD or any of the named Defendant members of THE NEW YORK CITY POLICE DEPARTMENT.
14. That upon information and belief, as a result of the false arrest of the Plaintiff, the Plaintiff was unlawfully detained in custody for approximately five hours, causing the Plaintiff extreme emotional distress.
15. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

16. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Fifteen (15) with the same force and effect as if set forth here at length.
17. The Plaintiff alleges that during the effectuation of the search of the Plaintiff's vehicle by named Defendants, NEW YORK CITY POLICE OFFICER GUTIERREZ, Shield Number 3293, NEW YORK CITY POLICE OFFICER ELLERS, Shield Number 11215, and NEW YORK CITY POLICE OFFICER BRAGGS, Shield Number 21920, intentionally damaged the interior of the Plaintiff's motor vehicle, causing approximately \$5,000.00 worth of damage, and causing Plaintiff to suffer monetary damages to repair his vehicle and causing extreme emotional distress to the Plaintiff.

18. That upon information and belief, named Defendant CITY OF NEW YORK, is responsible for the training and supervision of the named Defendant Officers, resulting in the aforementioned and hereinafter mentioned harm to Plaintiff.
19. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

20. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Nineteen (19) with the same force and effect as if set forth here at length.
21. The Plaintiff alleges that as a result of being arrested by the named Defendant Officers, the Plaintiff was placed on Administrative duties by his employer, forcing Plaintiff to forgo monetary compensation, until Plaintiff's employer investigated the unlawful arrest initiated by named Defendant Officers, NEW YORK CITY POLICE OFFICER GUTIERREZ, NEW YORK CITY POLICE OFFICER ELLERS and NEW YORK CITY POLICE OFFICER BRAGGS.
22. At the time of Plaintiff's arrest, Defendant New York City Police Officers GUTIERREZ, ELLERS and BRAGSS were employees and or servants of said Defendant CITY OF NEW YORK, and were acting as agents of Defendant CITY OF NEW YORK, in doing the acts complained of herein and within the scope of their authority.
23. That upon information and belief, solely by reason of the foregoing negligent training and supervision of the named Defendant New York City Police Officers by Defendant CITY OF NEW YORK, the Plaintiff was forced to pay for repair his motor vehicle, and suffered thousands of dollars in loss of income.
24. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

25. The Plaintiff repeats and realleges each and every allegation contained in Paragraphs One (1) through Twenty Four (24) with the same force and effect as if set forth here at length.
26. That upon information and belief, solely by reason of the foregoing negligent training, supervision of Defendant CITY OF NEW YORK of the named Defendant New York City Police Officers, resulting in Plaintiff's false arrest, unlawful searches of his person and personal effects, Plaintiff's civil rights, pursuant to United States and New York State Constitutions, were violated by the named Defendant Officers and Defendant CITY OF NEW YORK, causing the Plaintiff to suffer great mental distress, and injuring his reputation and character at his place of employment and in the public.
27. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendant(s) in the amount of One Million Dollars (\$1,000,000.00) together with the costs and disbursements of this action.

/S/

VICTOR M. BROWN, ESQ.
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Attorney for Plaintiff

Dated:
December 31, 2019